

Court No. - 39

Case :- WRIT - C No. - 2387 of 2019

Petitioner :- Hasim

Respondent :- State Of U P And 2 Other

Counsel for Petitioner :- Mohd. Naushad, Dhirendra Kumar Srivastava

Counsel for Respondent :- C.S.C., Awadhesh Kumar Saxena

Hon'ble B. Amit Sthalekar, J.

Hon'ble Mrs. Manju Rani Chauhan, J.

Heard Sri Dhirendra Kumar Srivastava, learned counsel for the petitioner, Sri A.K. Saxena, learned counsel for the respondent no.3 and the learned Standing Counsel for the respondents no.1 & 2.

The petitioner in the writ petition is seeking quashing of the recovery citation dated 12.12.2018 whereby a sum of Rs.2,23,355/- is sought to be recovered from the petitioner as arrears of electricity bill.

In paragraphs 8 & 10 of the writ petition it is stated that the petitioner is not in a position to pay off the entire amount in one go and therefore installments may be fixed.

In our opinion, the petitioner has a remedy by approaching the respondent no.3-Executive Engineer, Electricity Distribution Division-IV, Shamli under Clause 6.14 of the Electricity Supply Code, 2005.

We, therefore, dispose of this writ petition with a direction that if the petitioner appears before the respondent no.3-Executive Engineer, Electricity Distribution Division-IV, Shamli with his representation by 31.01.2019 at 11.00 A.M., the respondent no.3 shall consider and decide the said representation in accordance with law within a further period of two weeks.

Subject to the petitioner complying with the directions as given above, the impugned citation dated 12.12.2018 shall remain in abeyance and shall be subject to any final order which may be passed by the respondent no.3.

Order Date :- 24.1.2019

N Tiwari